

Case 0831

Case Name:

University College of the North v. Manitoba Government and General Employees' Union (Thompson Grievance)

**IN THE MATTER OF an Arbitration the Labour Relations Act AND IN THE MATTER
OF a Grievance on behalf of Chad Thompson alleging unjust termination
Between
University College of the North, (hereinafter referred to as "the Employer or
UNC"), and Manitoba Government and General Employees' Union, (hereinafter
referred to as "the Union")**

[2011] M.G.A.D. No. 33

Manitoba
Grievance Arbitration

Panel: R.A. Simpson (Chair)

Award: December 12, 2011.

(81 paras.)

Labour arbitration — Discipline and discharge — Grounds — Insubordination.

Labour arbitration — Awards — Variation of penalty.

The grievor had been employed as an assistant professor for approximately two years when he was terminated in August 2011 for insubordination, insolence and defiant behaviour in the context of his involvement on a search committee. There was no explanation for what had occurred, and the issue was whether the grievor deserved the privilege of working for the employer. The grievor allegedly breached confidentiality, failed to follow policy, and had directed an e-mail to human resources with unflattering comments about the interim president. The union asserted that while there was conduct by the grievor deserving of discipline, there had been no progressive discipline and termination was simply too severe.

HELD: Grievance allowed. The termination was rescinded and a penalty of a two-month suspension without pay substituted. The grievor's conduct was insubordinate and warranted some form of discipline. While the transgressions of the grievor were serious, a lesser discipline could well have been sufficient to rehabilitate the employment relationship. The grievor was not a long serving employee but had an unblemished record and was not challenged as to the exceptional service he had provided to the employer. While there was no evidence as to exceptional financial hardship, it was apparent that the dismissal would have had a significant adverse effect upon the grievor's career.

Statutes, Regulations and Rules Cited:

Labour Relations Act,

AWARD

1 This matter was referred to me as sole arbitrator pursuant to the expedited process established under *The Labour Relations Act*. The hearing scheduled for October 12, 2011 was, by agreement of counsel, adjourned and subsequently convened on November 28 and 29, 2011 in Thompson, Manitoba. Jeff Palamar appeared as counsel for the Employer and Helen Krahn represented the Union. Counsel confirmed that I was properly constituted and had jurisdiction to deal with the matter at issue. As this was a termination, it was acknowledged that, subject to the filing of preliminary documentation, the Employer would lead off. Counsel submitted a list of agreed exhibits, which were entered as Exhibits 1 through 37, inclusive. Additional documentation was to be entered into evidence through witnesses.

2 In a brief opening statement, counsel to the Employer confirmed that Chad Thompson ("the Grievor") had been employed as an Assistant Professor for approximately two years when he was terminated in August, 2011 for insubordination, insolence and defiant behaviour in the context of his involvement on a search committee. There was no explanation for what had occurred, and the issue was whether the Grievor deserved the privilege of working at UCN. Union counsel pointed out that as Assistant Professor, the Grievor had occupied a full time tenure track position. The letter of termination (Exhibit 3) alluded to essentially three complaints, being that the Grievor had breached confidentiality, had failed to follow policy and had directed an e-mail to Human Resources with unflattering comments about the Interim President. The Union asserted that while there was conduct by the Grievor deserving of discipline, there had been no progressive discipline and termination was simply too severe. Another individual had indeed received discipline for similar conduct in the form of a written warning. This case had to be considered in the context of a university and Article 72 of the Collective Agreement (Exhibit 37), the provision for **academic** freedom. The discipline was severe and inconsistent and should be set aside with an alternate sanction imposed.

3 The Employer led evidence through Konrad Jonasson ("Jonasson") who had been employed by UCN or its predecessor, Keewatin Community College, since 1989, and had held the position of Interim President and Vice-Chancellor since July, 2011.

4 The Union adduced evidence through the Grievor; Norma Baker ("Baker"), who was the Grievor's wife and had been employed at UCN as Dean of the Faculty of Arts and Sciences since July 2, 2009; and Laura Nelson ("Nelson") who had served as a Staff Representative for the Union in Thompson, Manitoba for some 4 1/2 years.

Although no exclusion of witnesses had been ordered, Baker was not in attendance until called to testify.

5 UCN was established in 2004, successor to Keewatin Community College. It operates two main campuses in The Pas, where the head office is located, and in Thompson, Manitoba. It also operates twelve regional centres, nine of which are located in First Nation communities. In addition, they provide some 40 programs through contract training. UCN services some 2,400 students, with a total staff of approximately 320, of which 120 would be education faculty.

6 The Grievor and his wife Baker joined the staff of UCN on July 2, 2009. Baker, as Dean responsible for the academic program for arts and science, and the Grievor as an Assistant Professor in sociology. As Dean, Baker reported to the Vice-President - Academic, Kathryn McNaughton ("McNaughton"). As a faculty member, the Grievor would normally have reported to the Dean, but as she was his spouse, he too reported directly to McNaughton. The Grievor held a tenure track position within the Union, whereas Baker's position was out of scope.

7 The issues in this arbitration arose out of Competition No. 3145, which was a search for a replacement for a position which had been vacated in arts and sciences due to an unexpected departure. The process began in late May/early June, and the posting (Exhibit 13) called for a start date of August 1, 2011. Baker, who was involved in determining what the position would encompass and the courses to be taught, worked with Human Resources in crafting the posting, using a standardized format. All hirings involved a search committee made up of faculty members who taught within the field, faculty from other affected areas, and Human Resources. Involvement in the search committee was voluntary.

8 Exhibits 4, 5, 6 and 7 are policies and procedures applicable to staffing/the recruitment process. In view of my conclusions, I will not detail the contents of these documents.

9 Although Baker was involved with the posting, reviewing applications and providing her evaluation comments, she then went on sick leave. As there was concern about possible delay, McNaughton requested that the Grievor chair the search committee.

10 As Chair, the Grievor received the CVs of the applicants from Human Resources, called a meeting and the committee prepared a short list of candidates to be interviewed. In this instance, only two candidates Aaron Crowe ("Crowe") and Jason Hildebrandt ("Hildebrandt"), were selected for interviews. While Crowe was interviewed by the committee, Hildebrandt was unable to participate due to an injury he had sustained, and would not be available until some time in mid August. Given that the start date was to be August 1st, and having regard to the application and interview of Crowe, the search committee, pending reference checks, unanimously endorsed Crowe.

11 There was discussion by the committee as to who should conduct the reference checks, Human Resources, as provided for in the policies, the committee Chair (the Grievor) or Baker (the Dean). It was felt that as it was an academic position, it would be better to have an academic rather than Human Resources do the reference check. However, as the successful applicant would be a peer to the Grievor, it was felt that it would be more appropriate for the Dean to make the calls. It was the Grievor's recollection that it was committee member Linda Hunt ("Hunt") of Human Resources that notified Baker to perform the reference check.

12 Baker and McNaughton had had an exchange some months earlier (Exhibits 11 and 12) wherein Baker had voiced her concern that the guidelines were not appropriate for faculty hires given the nature of the position, and indicating her view that a faculty member should be involved in scholarly hires. McNaughton indicated her personal view that the Dean as manager should be checking references, that she felt that there was flexibility in the guidelines, and welcomed further discussion. It does not appear that there was any follow-up discussion subsequent to that exchange.

13 Baker did do the reference checks of Crowe in Competition 3145.

14 Once the search committee had reached its conclusion, the committee Chair was to prepare a report and submit it to the President, who had the authority to make the hiring decision. In this instance, Hunt and the Grievor agreed that Hunt would prepare the committee report as she had had experience in that regard, whereas the Grievor had not. Hunt prepared the Selection Board Report (Exhibit 15), and submitted it to Interim President Jonasson with the committee's recommendation to hire Crowe.

15 By e-mail of July 14, 2011 (Exhibit 18), Jonasson refused to approve that recommendation. The full e-mail is as follows:

"I will not approve the recommendation of the selection committee re: the above noted competition.

There are several concerns from my perspective.

1. There is the appearance of conflict of interest by having both Norma Jo Baker and Chad Thompson on the selection committee. This should not happen in any future competitions.
2. I question the circumstances regarding the inability of the second candidate to interview. Was his withdrawal from the competition, due to a severe injury, relevant to an inability to fulfill the requirements of the position, if successful, or was it simply that he could not participate in an interview on the date and time scheduled? I require additional information regarding if we attempted to accommodate this individual in the interview process.

3. Given that the recommended candidate is currently working towards his PhD and is considered ABD, were any of the three applicants not granted interviews in a similar position with regard to their educational qualifications?
4. I recall that the recommended candidate was offered employment in Mathias Colomb several years ago and was considered to be in the same situation listed in the board report, ie: ABD. Is the information we have regarding his PhD program current and what has changed since he taught several years ago in Mathias Colomb? I note he is still considered ABD.

There are two options.

1. Consider this a failed search and start anew.
2. Go back and review all candidates to determine if any of the three who were not granted interviews should be interviewed and whether the second candidate is no longer interested given his injury. I do not have enough information from the board report to make a determination regarding the situation and intent of candidate 2.

If the other three do not merit an interview and candidate 2 cannot go forward, then the search should be declared a failed search and restarted."

16 Exhibit 18 was not directed to the selection committee, but to McNaughton and Baker, with a copy to Human Resources. However, Baker responded in Exhibit 19, advising Jonasson that she had not been a member of the hiring committee, but she was forwarding his message to the committee so that they might respond.

17 By e-mail of July 15, 2011 (Exhibit 21), committee member, Sandra Barber ("Barber") responded to Jonasson, addressing the four points raised in his e-mail, and raising concern as to the urgency of having this position filled to ensure that courses were available. The Grievor delayed responding to the Jonasson e-mail until he obtained a copy of the Selection Board Report which had been submitted by Hunt. Once he had received a copy of that report, the Grievor also responded to Jonasson on July 15, 2011 (Exhibit 27), adopting the earlier comment by Barber, echoing her concerns and further indicating that given what he had interpreted as a failed search, the Faculty of Arts and Sciences would not be able to offer certain courses for the fall term.

18 Jonasson did not take issue with the manner in which either Barber or the Grievor had responded through Barber's Exhibit 21 or the Grievor's Exhibit 27, as this was the type of commentary he was seeking. However, it is what occurred between Jonasson's e-mail of July 14, 2011 at 4:12 p.m. (Exhibit 18) and the Grievor's response

of July 15, 2011 at 10:43 a.m. (Exhibit 27) that resulted in the disciplinary sanction which has been challenged.

19 As somewhat of a collateral issue, in that it is not before me as such, but which is relied upon by the Union in support of its assertion of inconsistent disciplinary response, Baker sent an e-mail on July 15, 2011 (Exhibit 28) to a group she described as the Deans and Directors who would be affected by the vacant position. In that e-mail, she pointed out that Jonasson had refused to allow the hire to go forward and had instructed that the Faculty declare a failed search, as a result of which, a number of courses could not be offered for 2011/2012 which would adversely affect some students who had already registered and others who had yet to register, but who required those courses in the programs in which they were enrolled or pursuing.

20 By letter of August 10, 2011 (Exhibit 35) Baker was issued a disciplinary reprimand by Jonasson, which referred to various misconduct, including her involvement on the search committee, her involvement in contacting references and her e-mail of July 15, 2011. Baker, being out of scope, was not in a position to grieve that discipline, and it is not clear as to whether she responded. However, she did resign her position with UCN on November 13, 2011 and assumed the position of Vice-President - Academic with Southeast Regional College in Weyburn, Saskatchewan effective November 14, 2011.

21 On July 15, 2011 at 8:54 a.m., the Grievor directed an e-mail (Exhibit 23) to Hunt:

"Dear Linda,

I will not be submitting my notes and ratings for the LTF hiring process. Given the actions of the Interim President regarding competition 3145, I have no confidence that Mr. Jonasson will respect the policies and procedures of HR, and I am unwilling to participate any further in this or any other hiring committee until such time as I have regained confidence in the process.

I have copied Bev Bastien on this message as head of HR, and Kathryn McNaughton as my supervisor."

22 In essence, the Grievor was advising that given his experience in Competition 3145, and the rejection of the committee recommendation, he was not prepared to continue to participate as a committee member in Competition 3142, nor on any other hiring committee. Although the e-mail was not provided directly to Jonasson, he did subsequently receive a copy, the contents of which he found to be insubordinate. The Grievor testified that he did not feel it necessary to copy Jonasson as Jonasson had not been involved in that particular competition, but did copy his supervisor and Human Resources as he thought they should be aware of his position. The Grievor testified that he was not attempting to hide anything and he did not regret sending this e-mail, although wished he had worded it more carefully, acknowledging that the assertion with

respect to Jonasson was vague. The Grievor further indicated that he felt that it was part of his role to speak out where he believed the governance of the institution to be in error.

23 On July 15, 2011, at 9:14 a.m., the Grievor sent an e-mail (Exhibit 25) to Crowe, which read as follows:

"Dear Mr. Crowe,

As Chair of the Selection Committee for competition 3145 for the position of full-time, regular Social Science Instructor, I am writing to you with the deepest regret to inform you of the decision by Interim President Mr. Konrad Jonasson to reject the unanimous recommendation of the Selection Committee to offer you the position.

For further information concerning your options, you may wish to speak with Human Resources regarding UCN policy HR-03-0 'Competition (Recruitment) Process' and with MGEU regarding Article 11:04 'Recruitment, Selection and Appointment' in the collective agreement. I have copied Human Resources and MGEU on this message."

The e-mail was copied to the Manager of Human Resources and two Union staff representatives, including Nelson.

24 In his evidence, Jonasson reviewed the policies and procedures, and pointed out that there was no basis whatsoever for the Grievor to be contacting an unsuccessful candidate. In Jonasson's view, the Grievor, through this e-mail, was committing a violation of protocol and was breaching the confidentiality of the selection process.

25 For his part, the Grievor acknowledged in evidence that he was angry and that he felt that Jonasson's decision was not just. He accepted that sending this e-mail was a "very stupid thing to do" and regretted having done so.

26 Crowe, who was an internal candidate, did subsequently grieve the failure to award him the position.

27 Considerable evidence was devoted to whether Jonasson's e-mail of July 14th (Exhibit 18) amounted to a declaration of failed search. Jonasson testified that the e-mail was designed to indicate his concerns, to solicit additional information and to have the selection committee conduct further review. Two options were given. One was to declare a failed search, the other was to conduct the further review. Jonasson had not made a final decision, but wanted the committee to go back, review and bring forth another recommendation. It was only by subsequent e-mail on July 15, 2011 (Exhibit 31) that Jonasson declared the search as having failed.

28 Baker considered Exhibit 18 to be a declaration of failed search. In her view, there was nothing equivocal in the e-mail. The selection committee report identified one viable candidate, and the recommendation had been rejected. She indicated that she had spoken with McNaughton, who agreed with her that the interim President had declared a failed search. It would appear from her e-mail (Exhibit 21) that committee member Barber also considered Jonasson's e-mail of July 14, 2011 to be tantamount to a declaration of failed search.

29 The Grievor's reading of Exhibit 18 was that Jonasson was not prepared to approve the recommended candidate, Crowe, and therefore it was a failed search if the committee didn't select another candidate from those they had previously rejected or their second choice, who was not available. Therefore, the only reasonable interpretation was that Jonasson was declaring a failed search. His e-mail the following day was mere confirmation of what he had already determined.

30 There was also evidence presented with respect to prior dealings between Jonasson and the Grievor and other representatives of the faculty, and the attempts that had been made to schedule meetings to discuss various faculty concerns. The import of this evidence was directed at establishing a level of frustration on the part of the Grievor in terms of his ability to communicate with Jonasson. I will not recite that evidence in detail as it is clear that the Grievor was frustrated and angry with Jonasson for refusing to accept the recommendation in the Selection Board Report. The Grievor felt that Jonasson failed to consider the work that the selection committee had performed or to take into consideration the consequences to students of rejecting their recommendation. It is apparent that when the Grievor initiated Exhibits 23 and 25, he was angry.

31 Jonasson met with the Grievor and his Union representative Nelson on July 27, 2011 to review his concerns. There was an issue as to whether or to what extent the Grievor offered his regret or apology. Jonasson has no recollection of the Grievor providing any apology; the Grievor believes that he did show regret and offer an apology; Nelson testified that the Grievor apologized at least twice and perhaps three times, and she has a note of an apology having been given. In any event, subsequent to that meeting, the Grievor's position was terminated. Jonasson's letter of termination of August 17, 2011 (Exhibit 3) is attached as Appendix "A".

32 In his closing submission, counsel to the Employer described the Grievor as a short term employee who had been insubordinate, insolent and defiant without justification. He would have expected that the Grievor would have either "fallen on his sword" and apologized with a plea for a second chance or, alternatively, he would have attempted an explanation that could purport to justify his actions. In counsel's submissions, the Grievor had done neither.

33 Counsel argues that the Grievor's evidence was misleading in a clear attempt to minimize what he had done. The Grievor claimed that Exhibit 23 stems from his obligation to speak out, whereas counsel described it as an e-mail sent in anger, designed to humiliate the Interim President. Likewise, counsel described Exhibit 25 as

written in a state of outrage, to provoke a grievance to overturn a decision which, at that point, had yet to be made. Both of these e-mails were inappropriate and sent without justification, where the only proper response would have been to engage Jonasson if the object was to persuade him to accept the recommendation of the committee and avoid the potential consequences.

34 Counsel asserted that Exhibit 25 was totally contrary to UCN's interests and an intentional breach of policies and procedures. This was a serious transgression, and while carried out with anger, it was not spur of the moment. It was submitted that none of the normal factors of mitigation were present. The Grievor was a short term employee; the actions of the Grievor were deliberate; the relationship between the Grievor and UCN was strained; there had been no or no genuine apology; and no exceptional financial harm had been demonstrated.

35 In support of his submissions, counsel to the Employer relied on the following authorities:

1. ***Holden v. Metro Transit Operating Co.***, [1983] B.C.J. No. 1783 (B.C.S.C.)
2. ***Highland Valley Copper and United Steelworkers of America, Local 7619 (Marcus Grievance)***, [1999] B.C.C.A.A.A. No. 271 (Greyell)
3. ***Chatham-Kent (Municipality) v. National Automotive Aerospace, Transportation and General Workers Union of Canada (CAW - Canada), Local 127 (Clarke Grievance)***, (2007) O.L.A.A. No. 135 (Williamson)
4. ***Wourms v. Pioneer Grain Co.***, [2007] C.L.A.D. No. 223 (Wood)
5. ***Northwest Waste Systems Inc. v. Transport, Construction and General Employees' Association, Local 66 (Brickland Grievance)***, [2007] B.C.C.A.A.A. No. 158 (Blasina)

36 In summary, Employer's counsel submitted that this was extreme insubordination, striking at the heart of the employment relationship, yet the Grievor did not appreciate the seriousness of what he has done. If the Grievor thought Jonasson had made a wrong decision, he should have interacted with Jonasson immediately, providing him with the information he sought, advising him as to the potential consequences and seeking a resolution. Instead, he went out of his way, through Exhibits 23 and 25, to criticize and malign Jonasson without justification. Counsel asserted that in all of the circumstances, the Grievor should pay a heavy penalty and that dismissal was the appropriate response.

37 On behalf of the Union, counsel submitted that the termination letter (Exhibit 3) provides three reasons for termination:

1. The e-mail to Crowe (Exhibit 25);
2. A violation of policy with respect to the reference checks; and
3. The e-mail to Hunt (Exhibit 23).

38 As to Exhibit 25, counsel referred to the evidence of the Grievor wherein he acknowledged that he should have not written that e-mail, that it was stupid, that it was a breach of confidentiality and that at the meeting of July 27th with Jonasson, whether in the form of regret or an apology, he took responsibility for what he had done.

39 Counsel urged that this e-mail be considered in the context in which it was written; where the Grievor felt that Jonasson's decision was unjust and that not only had the best person not been hired, but the consequences were significant. It was argued that the e-mail was indeed written on the spur or in the heat of the moment, noting that the times of the various e-mails clearly indicated that there was a flurry of activity following what all or, at least, most considered Jonasson's declaration of a failed search. On any interpretation, Crowe, the recommended candidate, was out.

40 Although this was culpable conduct worthy of discipline, it did not warrant dismissal.

41 As to who conducted the reference checks, the Grievor attested to the fact that Hunt, the Human Resource representative on the committee, not only did not object to, but was part of the committee decision to have Baker conduct those checks. Hunt was not called as a witness.

42 Although the policy was not changed following the earlier exchange between Baker and McNaughton, McNaughton had indicated that there was flexibility in the policy. McNaughton was not called as a witness.

43 There was nothing hidden here; Baker was not on the committee in terms of the interview and recommendation process, but she was involved prior to the committee meeting and in conducting the subsequent reference checks.

44 Counsel to the Union submitted that there was nothing in relation to the reference checks that warranted discipline, and pointed out that neither Hunt nor Barber were disciplined for their role on the committee.

45 With respect to Exhibit 23, counsel again referred to the Grievor's evidence that while he wished he had done it differently, he felt it was appropriate to express concern over the action of Jonasson in refusing to approve the committee recommendation. It was asserted on behalf of the Union that he was speaking to the process of hiring the best candidate, which was part of his job in performing service at UCN.

46 Counsel made reference to Article 72 of the Collective Agreement (Exhibit 37) and the provision for **academic freedom**. It was asserted that whether one accepts Exhibit 23 is an expression of **academic freedom**, one must still assess whether such conduct in the context of a university merits dismissal.

47 Counsel further urged that a comparison be made between the termination letter (Exhibit 3) and the letter of reprimand issued to Baker (Exhibit 35). Both speak to conduct in relation to competition no. 3145, with similar language, similar expressions of concern, similar descriptions of conduct, but very disparate results.

48 In support of her submissions on behalf of the Union, counsel referred to:

1. *Canadian Labour Arbitration*, Brown & Beatty 7:3660, Insolent and Defiant Behaviour,
2. ***Mount Saint Vincent University Faculty Association and Mount Saint Vincent University***, (1995) (Outhouse);
3. ***Re University of Manitoba*** [1993] M.G.A.D. No. 124 (Freedman);
4. ***Re University of Manitoba and University of Manitoba Faculty Association*** [1993] M.G.A.D. No. 116 (Bowman);
5. ***Re Brandon University*** (1995) M.G.A.D. No. 85 (Marr);
6. ***University of Windsor and University of Windsor Faculty Association*** (2000) (Swan);
7. ***Caribou College v. Caribou College Faculty Association*** [1987] B.C.C.A.A.A. No 405 (Munroe);
8. ***Re University of Manitoba*** [1991] M.G.A.D. No. 19 (Schulman).

49 In summary, counsel pointed out that the Grievor, while not in a tenured position, as in many of the cases referred to, was in a tenure track position, eligible/required to seek tenure in the near future. That ability was lost without any consideration as to whether progressive discipline could or ought to have applied. The Grievor was not subject to progressive discipline, and Jonasson acknowledged that he had not looked at the Grievor's prior clear record.

50 The Union accepted the Grievor's obligation to mitigate, but here the termination occurred approximately two weeks prior to the start of the fall term, and it was not reasonable to expect the Grievor to attain a comparable or reasonable position while he challenged this decision. The Union requested that the Grievor be reinstated and compensated for all lost pay and benefits. The appropriate discipline to be imposed would have been a letter of reprimand, as was provided to Baker.

51 In response, counsel to the Employer clarified that his position with respect to mitigating factors was that the Grievor had not endured an exceptional hardship other than what one would normally anticipate from a termination.

52 Even if one were to consider Jonasson's e-mail (Exhibit 18) as a declaration of failed search, it could not justify the Grievor's response through Exhibits 23 and 25.

53 As to the assertion of an inconsistent application of discipline, counsel submitted that the misconduct of the Grievor and Baker was fundamentally different. Baker was advocating for those for whom she was responsible, although she had gone too far. The Grievor's communication was designed to cause trouble, to demean Jonasson.

54 Referring to Article 72, Employer's counsel pointed out that the parties themselves recognize limits upon **academic freedom**. While submitting that this is simply not a case of **academic freedom**, it was argued that even if it were **academic freedom**, it was not used responsibly.

55 Counsel concluded with comments to distinguish the authorities presented on behalf of the Union and cautioned against the application of cases relating to tenured professors.

ANALYSIS

56 The reasons for the termination are detailed in Jonasson's letter of August 17, 2011 (Exhibit 3). The first reason relates to the Grievor's position as Chair of the selection committee, including his having allowed Baker to continue to participate and to contact the Crowe references. The Grievor's conduct in this regard is stated to be "a significant breach of trust and a clear breach of policy".

57 That I have not detailed the guidelines, policies, and procedures as evidenced in Exhibits 4 through 7 is not to be interpreted as any indication whatsoever that these are not significant and necessary, particularly to an institution such as UCN. An employer must be able to create and insist upon compliance with its various processes, including those involved in selection and recruitment. However, in this case, I do not believe that a disciplinary response was appropriate to the deviations from process that may have occurred at the committee level in Competition 3145.

58 It is not entirely clear as to whether Baker was formerly a member of this selection committee. As Dean, she was involved in preparing the posting and in receiving, reviewing and evaluating the applications. However, she then went on sick leave and was not a part of the actual selection committee that assessed the applications, short listed and interviewed the candidates and made the recommendation for hire to the Interim President.

59 The Grievor was requested to chair the committee by his direct report, McNaughton. The committee did not meet until he was appointed chair and Baker was

not involved in that committee process. The committee determined that Crowe was the appropriate candidate, pending a check of his references.

60 Although UCN policy provides that Human Resources will check all references, there was evidence that managers had checked references for academic hires in the past. There was also the earlier exchange between Baker and McNaughton which, although no amendment to the policy was made, recognized the benefit of having an academic check references on an academic hire and noted flexibility in some aspects of the policies. Here, it must also be noted that Human Resources was involved in the decision to request Baker to conduct the reference checks through the input of committee member Hunt.

61 Baker was not a member of the selection committee with respect to the short listing, interviewing or selection of the recommended candidate. However, she did again become involved in the process when requested to conduct the reference checks. I do not believe that it is fair to say that the Grievor allowed Baker to participate "without the knowledge or approval of Human Resources." In any event, in all of the circumstances, I cannot find that Baker's involvement with the selection committee amounts to a breach of trust on the part of the Grievor or to a breach of policy by the Grievor warranting a disciplinary response.

62 In the termination letter, Jonasson asserts that his July 14th e-mail (Exhibit 18) was not a declaration of a failed search, but an expression of concerns about the recommendation and process, with various options to pursue. It is his position that he did not declare a failed search until his e-mail of July 15th (Exhibit 31).

63 Exhibit 18 does state that Jonasson will not approve the recommendation of the selection committee; it does indicate concerns and it does provide two options. One option is to "consider this a failed search and start anew"; the other is to go back and consider the three applicants that were not short listed for interview or whether Hildebrandt, who was not interviewed due to his unavailability, could be accommodated. The e-mail concludes, "If the other three do not merit interview and candidate 2 cannot go forward, then the search should be declared a failed search and restarted."

64 It is not hard to understand why Barber, Baker, the Grievor and McNaughton considered the search to have failed based upon Exhibit 18. The hiring of Crowe, who had been recommended by the Committee, was not an option. The committee's choices were to come back with a recommendation for one of the applicants whom they had already determined not to short list, or with Hildebrandt, who was not available. It is to be noted that in his follow up e-mail (Exhibit 31), Jonasson states, "I wish to provide clarification regarding the above noted position. My decision is to declare this a failed search. Please be governed accordingly regarding any decisions to implement a new search."

65 However, the fact that the Grievor considered the July 14th e-mail (Exhibit 18) equivalent to a declaration of a failed search, and in my view was entitled to do so, does not excuse his subsequent conduct.

66 The second reason for termination relates to the Grievor's e-mail to Hunt of July 15, 2011 (Exhibit 23). There is reference in the termination letter to the Grievor having been asked to produce his notes and rating, "in respect of competition no. 3145". Jonasson acknowledged that that reference should have been to competition no. 3142, but could not recall the circumstances pertaining to the production of these notes. Further, the fact that the Grievor was not prepared to continue to participate in competition no. 3142 or on any other hiring committee was not the issue; participation in these committees is voluntary. The concern was the reference to Jonasson.

67 The Grievor testified that it was appropriate/necessary to provide a reason for his position in withdrawing from this and future selection processes. He was not hiding anything in that his e-mail was copied to the head of Human Resources and his direct report, McNaughton. He further suggested that it was a part of the service component of his position to provide criticism where he felt proper process had not been followed. He did not regret sending the message that he was not prepared to participate in hiring committees given Jonasson's rejection of the recommendation in Competition 3145, but acknowledged that he should have expressed it differently. It was not his view that Jonasson has no respect for the policies and procedures of Human Resources, but he does believe that Jonasson failed to respect the process in his response to the Selection Board Report in Competition 3145.

68 It was the Grievor's position that Jonasson ought to have communicated with the Selection Committee before declaring a failed search. It certainly appears to me that the lack of communication caused/contributed to/exacerbated what occurred. I direct this comment at both parties. I agree with Employer's counsel in his submission that the Grievor should have engaged Jonasson before issuing his Exhibit 23 e-mail to Hunt. However, I also agree that much may have been avoided had Jonasson contacted the selection committee, and presumably the Grievor as Chair, with his comments and concerns before rejecting the recommendation through his e-mail (Exhibit 18).

69 In considering what constitutes insubordination, I refer to the comment of Arbitrator Greyell in *Highland Valley Copper and United Steelworkers of America, Local 7619* at paragraph 17:

"**17** Insubordination can take many forms, all of which involves a rebuke of management's authority to direct the workplace. Insubordination can cover many types of behaviour. It can be an overt refusal to follow a lawful direction, it may be an insult or rude remark (sometimes made as a result of a flare-up of temper), or it may be a less obtrusive behaviour, but with an intent to undermine and challenge management's authority. The range of disciplinary response for insubordination varies widely. Insubordination is usually considered by arbitrators to be a serious offence, the penalty for which can be mitigated if the conduct is

the result of a momentary outburst. As stated in Canadian Labour Arbitration (2d ed. Brown & Beatty) at pp. 458-459:

'Directing language which is insolent towards and contemptuous of members of management, will amount to insubordination where such behaviour involves a resistance to or defiance of the employer's authority. From this, it has been suggested that if the occurrence and abuse of outbursts are the result of a momentary flare-up of temper, and, therefore, do not challenge the employer's authority, the imposition of disciplinary sanctions would not be justified. Furthermore in determining whether the quality of the Grievor's remarks can be characterized as insolent and defiant behaviour, regard may be had to the nature of the business and the common language and mode of expression utilized and tolerated (condoned) in the plant. Assuming that the language or behaviour can be characterized as disruptive, or can be viewed as insolent and contemptuous of management, it appears from the awards that, standing alone, such remarks usually merit only some minor disciplinary sanction, whereas if the language was accompanied by a refusal to work, threats, or an assault on a supervisor, more severe disciplinary sanctions, including discharge, may be justified.'

70 Clearly, Jonasson took issue with the Grievor's comments, and understandably so. While it may have been acceptable for the Grievor to express his disappointment with Jonasson's response to the committee recommendation, it was not appropriate for him to make general comments on Jonasson's respect for the policies and procedures of Human Resources. I do not accept that this Exhibit 23 e-mail to Hunt fell within the service component of the Grievor's role as an Assistant Professor, nor can I find that it could be said to be encompassed within the parameters of **academic freedom**. The comment directed at the Interim President has a degree of insolence, amounting to insubordination.

71 On the other hand, the action taken in withdrawing from an existing and future hiring committees and the e-mail submitted to Hunt were clearly done in anger and frustration, and while perhaps not what is generally considered to be spur of the moment, certainly followed closely upon his receipt of Jonasson's rejection of the committee recommendation and what the Grievor considered to be a declaration of failed search.

72 Considered in isolation, having regard to all of the surrounding circumstances, I would have thought that Jonasson's concerns with respect to this particular e-mail (Exhibit 23) could have been dealt with through perhaps a verbal or, at most, a written reprimand.

73 The third reason for termination involves Exhibit 25, the Grievor's e-mail to Crowe. Again, the Grievor was unquestionably angry when he sent this e-mail some 20 minutes after his e-mail to Hunt. There was no attempt to suggest that this e-mail

represented an expression of criticism pursuant to the service component of his role as an Assistant Professor or that it was in any way justified/protected by **academic freedom**; nor could there be. The Grievor should not have been communicating with the unsuccessful candidate, and most certainly should not have been disclosing confidential information as to the internal selection process. This inappropriate action is further compounded by what amounts to an invitation to challenge the Employer's decision, and copying the e-mail to individuals who are not employed with UCN. The contents of this e-mail were in defiance of and a challenge to the Employer's authority.

74 That this e-mail was insubordinate was not challenged by the Union. There was an issue as to the extent to which the Grievor regretted and/or apologized for his misconduct. There is no doubt that the Grievor recognized that he was wrong, and the only explanation is that he was extremely upset with Jonasson's decision and the consequences of that decision. However, his comments were not consistent with the values/ethics recognized in UCN statements (Exhibits 8 and 9).

75 The issue is whether this e-mail to Crowe, following upon the earlier e-mail (Exhibit 23), warrant termination. Although, as disclosed by the evidence, the relationship between the Grievor and Jonasson is understandably strained, I am not satisfied that the employment relationship is irreparably harmed or cannot be successfully rehabilitated.

76 The Grievor is not a long term employee, slightly more than two years. He was not tenured, but was hired on a full time tenure track appointment, with the ability to apply for tenure no later than the fourth year of appointment. The Grievor's record over his two years of employment was without blemish, and he was not challenged on his evidence as to the exceptional services he had provided. While there was no evidence as to exceptional financial hardship, it is apparent that the dismissal will have a significant adverse effect upon his career.

77 There was no evidence that a progressive discipline short of termination was considered. I note the comment of Arbitrator Marr in **Re Brandon University** at paragraph 50:

"**50** We have also given careful consideration to the need to balance the interests of the University and Dr. Liu. Clearly, Dr. Liu deserved to be disciplined in a serious way to ensure that his punishment brings home to him that his objectionable behaviour can and will not be tolerated, while, at the same time as pointed out by Arbitrator Bowman in a subsequent grievance/arbitration between the University of Manitoba and the University of Manitoba Faculty Association regarding the same Professor Jacques Collin (December 16, 1993), progressive discipline 'is considered desirable because, if successful, it can restore a valuable employee to contributing to the employer's success and is clearly fairer toward the employee than a savage and draconian response to a sin which the employee may not have been aware of committing, and whose gravity may not have been appreciated.'"

78 The transgressions of the Grievor were serious, but in my view, a lesser discipline could well have been sufficient to rehabilitate the employment relationship between the Grievor and UCN.

79 It was argued on behalf of the Union that there was an inconsistency in the application of discipline as evidenced by a comparison of the letter of reprimand issued to Baker on August 10, 2011 (Exhibit 35) and the letter of termination issued to the Grievor on August 17, 2011. There is similarity in these letters in the language used in describing the misconduct and the Employer's interpretation of the offence. However, I accept the submission of the Employer's counsel that there is a significant difference in the two situations, with Baker communicating with colleagues, advocating for the faculty and students for whom she is responsible, as opposed to the Grievor communicating with an unsuccessful candidate, disclosing confidential information and advocating the challenge to his superior's decision. Whether a letter of reprimand was appropriate for Baker is not before me, but more than a reprimand is warranted for the misconduct of the Grievor.

80 In all of the circumstances of this case, I am of the view that an appropriate penalty is a two month suspension with loss of pay. This is a significant penalty which should send a message that behaviour such as occurred here will not be tolerated.

AWARD

81 In the result, I would allow the grievance, rescind the termination and substitute a two month suspension without pay. I will make myself available should any issues arise concerning the implementation of this Award.

Dated at Winnipeg, Manitoba, this 12th day of December 2011.

R.A. Simpson, Chair

* * * * *

APPENDIX "A"

August 17, 2011

Chad Thompson

Private & Confidential

Dear Mr. Thompson:

Re: .. Employment with UCN

Please be advised that your employment with University College of the North ("UCN") is being terminated immediately, for just cause, A Record of Employment will be issued to you shortly as well as payment for all outstanding wages owing,

Your actions relating to competition no. 3145 are in fundamental breach of your employment obligations and have afforded just pause for your termination, As you know, you were appointed as Chair of the Selection Board for competition no. 3145. The competition was to be governed in accordance with UCN's policy no. HR-03-04, a copy of which we enclose for your reference. During our meeting of My 27, 2011, you acknowledged that you were aware of and had read the enclosed policy. The policy provides, among other things, that:

- a. Human Resources shall establish the Selection Board, meaning that only those individuals who have been selected and approved by Human Resources are properly appointed to serve on the Selection Board;
- b. Selection Board members are to act professionally and responsibly in their role and must maintain confidentiality in the competition process;
- c. Applications are to be screened in accordance with UCN Policy HR 03-05;
- d. The Selection Board is to rate and rank candidates in accordance with UCN Policy HR 03-06 and HR 03-09;
- e. Human Resources will check all references of the top ranked candidates and will inform the Hiring Manager of the general nature of the results;
- f. Any offers of employment will be made directly by Human Resources and Human Resources will also notify all candidates who were interviewed but unsuccessful.

As you know, Norma Jo Baker withdrew from the Selection Board in mid June of 2011 and so you were selected to act as Chair. By email dated June 15, 2011, Ms McNaughton advised you that you would continue to Chair the Board until the end of the process. Without the-knowledge or approval of Human Resources, you allowed Ms Baker to continue to participate on the Selection Board (after she withdrew) and allowed her to contact references on behalf of UCN. Ms Baker was not an authorized member of the Selection Board at the relevant time and there was absolutely no authority for her to contact references on behalf of UCN. When you were first approached about this issue, you denied that Ms Baker had any involvement in the Selection Board. You have since acknowledged that Ms Baker Indeed contacted references on behalf of the Selection Board and UCN. This Is a significant breach of trust and a clear breach of policy.

As you know, as Interim President of UCN I have final authority with respect to hiring of staff. By email dated July 14, 2011, sent at 4:12 p.m., I advised that I was not prepared to approve the recommendation at that point in time because I had some concerns,

which I detailed in my email. To be clear, I did not declare a failed search but simply expressed some concerns about the recommendation and process, and I set out various options to pursue. I did not declare a failed search until my email of July 15 sent at 12:17pm.

You were asked to produce your notes and ratings in respect of competition no. 3145 so that I could better understand what had occurred, To date, we have not received your notes in respect of this competition, By email issued to Linda Hunt dated July 15, 2011 and sent at 8:54 am, you made the following allegations against me:

I will not be submitting my notes and ratings for the LTF hiring process. Given the actions of the Interim President regarding competition 3145, I have no confidence that Mr. Jonasson will respect the policies and procedures of HR, and I am unwilling to participate any further in this or any other hiring committee until such time as I have regained confidence in the process.

Your allegations are entirely unfounded and have not been made through proper channels. As of the time of your allegations above, I had not even declared a failed search, but only expressed concerns about the process and recommendations being put forward, As Interim President of UCN, it is my responsibility to review the recommendations of the Selection Board and to make a final decision on it. Neither the expressing of my concerns, nor the declaration of a failed search is in breach of UCN policies and procedures. Your allegations are insolent and simply cannot be tolerated.

By email sent July 15 at 9:14 am, approximately twenty minutes after making the allegations, above, you violated UCN policy by sending an email directly to the recommended candidate, Aaron Crowe, advising him that I had decided to "reject the unanimous recommendation of the Selection Committee" to offer him the position. Your email was copied to representatives of the MGEU Union, who are not employees of UCN. You did not copy me on your email.

Again, at the time your emails were sent, I had not yet formally declared a failed search, Regardless, you did not have any authority to contact Mr. Crowe on behalf of UCN, and your decision to copy individuals acting for the Union, who are not employed by UCN, was in clear breach of policy and confidentiality. You even went so far as to highlight for the unsuccessful applicant the various sections of the Collective Agreement that he should refer to, in considering my "decision" (which I had not yet even made).

Your conduct in respect of competition no, 3145 in fundamental breach of your employment obligations and was clearly intended to undermine me and my authority as Interim President of UCN. In light of all of the above, your employment is hereby being terminated immediately, for just cause.

University College of the North

Per: Konrad Jonasson, Interim President, UCN